

Item No. 04

Court No. 1

**BEFORE THE NATIONAL GREEN TRIBUNAL
PRINCIPAL BENCH, NEW DELHI**

Original Application No. 86/2025
(I.A. Nos. 135/2025 & 134/2025)

Raj Prakash Yadav

Applicant

Versus

MoEF&CC & Ors.

Respondent(s)

Date of hearing: 03.03.2025

**CORAM: HON'BLE MR. JUSTICE PRAKASH SHRIVASTAVA, CHAIRPERSON
HON'BLE DR. A. SENTHIL VEL, EXPERT MEMBER
HON'BLE DR. AFROZ AHMAD, EXPERT MEMBER**

Applicant: Mr. Tanay, Adv. for Applicant (Through VC)

ORDER

1. In this Original Application, the Applicant has challenged the District Survey Report (DSR) of District Agra dated 26.07.2024. The submission of Ld. Counsel for the Applicant is that the DSR of Agra Annexure (at page 182) has been prepared by a private consultant namely Eco Consultant Services which is not permissible. He has submitted that in appendix X to the Notification dated 15.01.2016 the procedure for preparation for DSR has been prescribed and in terms thereof the survey is required to be carried out by the DEIAA with the assistance of the Government Department. A sub-Divisional Committee was required to visit the site comprising of the officials of different Government Department. He submits that the appendix X of the Notification does not provide for involvement of any private consultant. He has also submitted that such an action runs counter to the observation of the Hon'ble Supreme Court in para 13 of the judgment in the case of State of Bihar v. Pawan Kumar reported in (2022) 2 SCC 348 wherein it has been observed that:-

*“13. We further find that when the 2020 guidelines as well as the notification issued by MoEF and CC of 2016 itself provide for constitution of subdivisional committees comprising of the officers of the State Government from various Departments for identification of the potential sites for mining, **there would be no necessity of the DSRs being prepared through private consultants as directed by the Tribunal in the impugned order.** The subdivisional committee consists of various officers from Revenue Department, Irrigation Department, State Pollution Control Board, Forest Department and Geology Mining Department of the State Government. They are better equipped to visit the sites and prepare the draft DSR for the concerned district. Apart from that, preparation of DSR through private consultants would also unnecessarily burden the public exchequer. We are therefore of the view that the direction in that regard issued by the Tribunal requires to be modified. We are further of the considered view that until the DSRs are finalized and granted approval by SEAC and SEIAA, it is appropriate that certain necessary arrangements are permitted so that the State can continue with legal mining activities. This apart from preventing illegal mining activities, would also ensure that the public exchequer is not deprived of its share in legalized mining.”*

2. He submits that the DSR prepared for Agra by a private consultant cannot be sustained. The Applicant has also challenged the advertisement dated 05.12.2024 for grant of mining lease on the basis of DSR in question.
3. Issue Notice to the Respondents for filing to their reply by way of affidavit.
4. The Applicant is directed to serve the Respondents and file affidavit of service atleast one week before the next date of hearing.
5. List on 03.07.2025.

Prakash Shrivastava, CP

Dr. A. Senthil Vel, EM

Dr. Afroz Ahmad, EM

March 03, 2025
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